

Form 15-76B
(Subrule 15-76(2))

COURT FILE NUMBER _____

COURT OF KING'S BENCH FOR SASKATCHEWAN
(FAMILY LAW DIVISION)

JUDICIAL CENTRE _____

PETITIONER _____

RESPONDENT _____

**NOTICE OF APPLICATION FOR JUDGMENT IN AN UNCONTESTED FAMILY
LAW PROCEEDING/ UNCONTESTED DIVORCE PROCEEDING**

NOTICE TO RESPONDENT [or PETITIONER], _____ .
(name)

This application is being made by the petitioner, _____. You are the respondent.
(or This application is being made by the respondent, _____. You are the petitioner.)

You have the right to state your side of this matter before the Court. To do so, you must be in Court when the application is heard as shown below:

Where _____

Date _____

Time _____

(Read the Notice at the end of this document to see what else you can do and when you must do it.)

1 The petitioner/respondent requests that this proceeding be set down for determination as an uncontested proceeding to be heard pursuant to Rule 15-76 on the basis of affidavit evidence.

2 The petitioner/respondent claims the following remedy:

- ☐ Divorce ☐ early date of effect of judgment
- ☐ Parenting
- ☐ Support for petitioner/respondent in the amount of \$ _____ per month
- ☐ Support for children in the amount of \$ _____ per month
- ☐ Remedy under *The Family Property Act*
- ☐ Costs
- ☐ Other: *(specify)* _____

3 The following pleadings, proceedings and documents are on file:

- ☐ Petition
- ☐ Answer
- ☐ Answer and Counter-Petition
- ☐ Reply
- ☐ Demand for Notice
- ☐ Marriage registration
- ☐ Order dispensing with production of marriage registration
- ☐ Financial Statements ☐ petitioner ☐ respondent
- ☐ Property Statements ☐ petitioner ☐ respondent
- ☐ Waiver of Financial Statements
- ☐ Waiver of Property Statements
- ☐ Central Registry notification
- ☐ Affidavit of personal service of the petition on the respondent
- ☐ Affidavit of compliance with order permitting substituted service of petition on the respondent.

4 The petitioner claims that service of the petition on the respondent was effected in _____ on _____, by:
(province/state or country) (date)

- ☐ Personal service. See affidavit of personal service filed.
- ☐ Substituted service. See copy of order and affidavit of compliance attached to petition.

5 The petitioner claims the respondent was noted for default of Answer on _____.
(date)

(Delete paragraphs 4 and 5 if it is a joint application.)

6 The petitioner's (or respondent's) affidavit required by Rule 15-78 (or Rule 15-82) accompanies this application.

The following documents are attached as exhibits to the affidavit:

- ☐ Agreement as to Child Support
- ☐ Income information ☐ petitioner ☐ respondent
- ☐ Separation or financial or parenting agreement
- ☐ Previous court order(s)
- ☐ Undertaking that no appeal from judgment will be taken
- ☐ Other: (specify) _____

7 The following documents also accompany this application:

- ☐ Affidavit of respondent admitting adultery
- ☐ Certified transcript of the examination for discovery of the respondent
- ☐ Draft judgment
- ☐ Draft child support order
- ☐ Draft certificate
- ☐ Addressed envelopes – 2 addressed to respondent and 2 addressed to petitioner
- ☐ Other: (*specify*) _____

8 The petitioner claims the respondent's address is: _____

(*add paragraph 9 if applicable*)

9 The petitioner claims the address for the respondent's lawyer is: _____

DATED at _____, Saskatchewan, this _____ day
of _____, 2 _____.

(*signature of party or party's lawyer*)

NOTICE

If you do not come to Court either in person or by your lawyer, the Court may give the other party what they want in your absence. You will be bound by any order that the Court makes. If you want to take part in this application, you or your lawyer must come to Court for the hearing of the application on the date set. If you intend to rely on affidavit or other evidence when the application is heard or considered, you must serve your affidavit or other evidence on the other party and file it with the Court, with proof of service, before the date set for the hearing.

CONTACT INFORMATION AND ADDRESS FOR SERVICE

If prepared by a lawyer for the party

Name of firm: _____

Name of lawyer in charge of file: _____

Address of legal firm: _____

(set out the street address)

Telephone number: _____

Fax number *(if any)*: _____

E-mail address *(if any)*: _____

or

If the party is self-represented

Name of party: _____

Address for service: _____

(set out the street address)

Telephone number: _____

Fax number *(if any)*: _____

E-mail address *(if any)*: _____

Amended. Gaz. 13 Oct. 2023.